142 PROPOSITION

HOUSE CONCURRENT RESOLUTION 2044

A CONCURRENT RESOLUTION

PROPOSING AN AMENDMENT TO THE CONSTITUTION OF ARIZONA; AMENDING ARTICLE II, SECTION 36, CONSTITUTION OF ARIZONA; RELATING TO THE PROHIBITION OF PREFERENTIAL TREATMENT AND DISCRIMINATION.

Be it resolved by the House of Representatives of the State of Arizona, the Senate concurring:

1. Article II, section 36, Constitution of Arizona, is proposed to be amended as follows if approved by the voters and on proclamation of the Governor:

36. Preferential treatment or discrimination prohibited; exceptions; definition

Section 36. A. This state shall not DO ANY OF THE FOLLOWING:

1. Grant preferential treatment to or discriminate against any individual or group on the basis of race, sex, color, ethnicity or national origin in the operation of public employment, public education or public contracting.

2. COMPEL AN APPLICANT, EMPLOYEE, STUDENT OR CONTRACTOR TO ENDORSE OR SUPPORT GIVING PREFERENTIAL TREATMENT TO OR DISCRIMINATING AGAINST ANY INDIVIDUAL ON THE BASIS OF RACE OR ETHNICITY AS A CONDITION OF ANY ADMISSION, GRADUATION, HIRING, PROMOTION, CERTIFICATION OR CONTRACTING DECISION OR OTHER EMPLOYMENT FUNCTION OR SCHOLARSHIP OPPORTUNITY.

3. SPEND PUBLIC MONIES TO OPERATE OR CONTRACT FOR ANY OFFICE OR POSITION IN AN INSTITUTION OF PUBLIC EDUCATION THAT IS RESPONSIBLE FOR PROMOTING PREFERENTIAL TREATMENT TOWARD OR DISCRIMINATION AGAINST AN INDIVIDUAL OR GROUP ON THE BASIS OF RACE OR ETHNICITY.

4. IMPLEMENT ANY DISCIPLINARY POLICY OR PRACTICE THAT TREATS AN INDIVIDUAL STUDENT OR EMPLOYEE OR GROUP OF STUDENTS OR EMPLOYEES DIFFERENTLY ON THE BASIS OF RACE OR ETHNICITY.

B. THE PROHIBITION IN SUBSECTION A, PARAGRAPH 2 OF THIS SECTION REGARDING COMPELLING AN APPLICANT, EMPLOYEE, STUDENT OR CONTRACTOR TO ENDORSE OR SUPPORT GIVING PREFERENTIAL TREATMENT TO OR DISCRIMINATING AGAINST ANY INDIVIDUAL ON THE BASIS OF RACE OR ETHNICITY INCLUDES ALL OF THE FOLLOWING:

1. REQUIRING OR SOLICITING A WRITTEN OR ORAL STATEMENT IN SUPPORT OF ANY OF THE FOLLOWING:

(a) A THEORY OR PRACTICE THAT ADVOCATES FOR THE DIFFERENTIAL TREATMENT OF ANY INDIVIDUAL OR GROUP OF INDIVIDUALS ON THE BASIS OF RACE OR ETHNICITY.

(b) ANY FORMULATION OF RACE-BASED DIVERSITY, EQUITY AND INCLUSION OR INTERSECTIONALITY IN CONTEMPORARY AMERICAN SOCIETY BEYOND UPHOLDING THE EQUAL PROTECTION OF THE LAWS GUARANTEED BY THE FOURTEENTH AMENDMENT OF THE CONSTITUTION OF THE UNITED STATES.

(c) THE BELIEF THAT A RACIALLY NEUTRAL OR COLORBLIND LAW, POLICY OR INSTITUTION PERPETUATES RACIAL OPPRESSION OR INJUSTICE OR RACE-BASED PRIVILEGE IN CONTEMPORARY AMERICAN SOCIETY.

2. REQUIRING OR SOLICITING AN INDIVIDUAL TO CONFESS RACE-BASED PRIVILEGE OR DISCUSS THE INDIVIDUAL'S RACE OR ETHNICITY OR VIEWS ON OR EXPERIENCE WITH THE RACE OR ETHNICITY OF OTHERS.

3. GIVING PREFERABLE CONSIDERATION TO AN INDIVIDUAL FOR AN OPINION EXPRESSED OR AN ACT TAKEN IN SUPPORT OF ANOTHER INDIVIDUAL OR A GROUP OF INDIVIDUALS IF THE CONSIDERATION IS BASED ON THE RACE OR ETHNICITY OF THOSE INDIVIDUALS.

4. REQUIRING ENROLLMENT IN, OR COMPLETION OF, ANY TRAINING OR COURSE THAT

PROMOTES ANY OF THE TENETS PRESCRIBED IN PARAGRAPHS 1, 2 AND 3 OF THIS SUBSECTION AND AS MAY BE PRESCRIBED BY THE LEGISLATURE.

C. THE PROHIBITION IN SUBSECTION A, PARAGRAPH 3 OF THIS SECTION REGARDING SPENDING PUBLIC MONIES TO OPERATE OR CONTRACT FOR ANY OFFICE OR POSITION IN AN INSTITUTION OF PUBLIC EDUCATION THAT IS RESPONSIBLE FOR PROMOTING PREFERENTIAL TREATMENT TOWARD OR DISCRIMINATION AGAINST AN INDIVIDUAL OR GROUP ON THE BASIS OF RACE OR ETHNICITY:

1. INCLUDES USING ANY APPROPRIATED MONIES OR ANY REVENUE THAT IS DERIVED FROM ANY TAX, FEE, GRANT, TUITION, ENDOWMENT OR DONATION OR ANY OTHER SOURCE THAT IS UNDER THE CONTROL OF THE INSTITUTION OR THE INSTITUTION'S COMPONENT UNITS TO PROMOTE OR PROMULGATE ANY OF THE FOLLOWING:

(a) AN EFFORT TO MANIPULATE OR OTHERWISE INFLUENCE THE COMPOSITION OF THE FACULTY OR STUDENT BODY WITH REFERENCE TO RACE, SEX OR ETHNICITY, APART FROM ENSURING COLORBLIND AND SEX-NEUTRAL ADMISSIONS AND HIRING IN ACCORDANCE WITH STATE AND FEDERAL ANTIDISCRIMINATION LAWS.

(b) THE DIFFERENTIAL TREATMENT OF OR THE PROVISION OF SPECIAL BENEFITS TO INDIVIDUALS ON THE BASIS OF RACE OR ETHNICITY.

(c) POLICIES OR PROCEDURES THAT ARE DESIGNED OR IMPLEMENTED IN REFERENCE TO RACE OR ETHNICITY.

(d) TRAINING, PROGRAMMING OR ACTIVITIES THAT ARE DESIGNED OR IMPLEMENTED WITH REFERENCE TO RACE, ETHNICITY, INTERSECTIONALITY, GENDER IDENTITY OR SEXUAL ORIENTATION.

(e) RELATED PRACTICES OR CONCEPTS AS MAY BE PRESCRIBED BY THE LEGISLATURE.

2. DOES NOT INCLUDE ANY OF THE FOLLOWING:

(a) ACADEMIC COURSE INSTRUCTION, RESEARCH OR CREATIVE WORKS BY THE INSTITUTION'S STUDENTS, FACULTY OR OTHER RESEARCH PERSONNEL AND THE DISSEMINATION OF THOSE ITEMS.

(b) ACTIVITIES OF REGISTERED STUDENT ORGANIZATIONS OR ARRANGEMENTS FOR GUEST SPEAKERS AND PERFORMERS WITH SHORT-TERM ENGAGEMENTS.

(c) MENTAL OR PHYSICAL HEALTH SERVICES THAT ARE PROVIDED BY A LICENSED PROFESSIONAL.

~~B.~~ D. This section does not:

1. Prohibit bona fide qualifications based on sex, INCLUDING SEX-SPECIFIC SPACES OR DESIGNATIONS, that are reasonably necessary to the normal operation of public employment, public education or public contracting.

2. Prohibit action that must be taken to establish or maintain eligibility for any federal program~~,~~ if BOTH OF THE FOLLOWING APPLY:

(a) Ineligibility would result in a loss of federal monies to this state.

(b) THE ACTION THAT WOULD OTHERWISE BE PROHIBITED IS LIMITED TO OUTREACH, ADVERTISING OR COMMUNICATION EFFORTS THAT DO NOT MODIFY ANY APPLICATION CRITERION OR THE EVALUATION OF ANY STUDENT, EMPLOYEE OR CANDIDATE.

3. Invalidate any court order or consent decree that is in force as of ~~the effective date of this section~~ DECEMBER 14, 2010.

4. PROHIBIT A QUALIFICATION THAT IS BASED ON TRIBAL MEMBERSHIP AS PART OF A PROGRAM ESTABLISHED TO SERVE MEMBERS OF INDIAN TRIBES.

5. PROHIBIT DATA COLLECTION, ADVERTISING OR OUTREACH, AS REQUIRED BY FEDERAL LAW.

6. PROHIBIT MENTAL OR PHYSICAL HEALTH SERVICES THAT ARE PROVIDED BY A LICENSED PROFESSIONAL.

7. INCLUDE A TRAINING, PROGRAM OR ACTIVITY THAT IS DEVELOPED BY AN ATTORNEY AND APPROVED IN WRITING BY THE INSTITUTION'S GENERAL COUNSEL AND GOVERNING BOARD FOR THE SOLE PURPOSE OF ENSURING COMPLIANCE WITH ANY APPLICABLE COURT ORDER OR STATE OR FEDERAL ANTIDISCRIMINATION LAW.

8. PROHIBIT IDENTIFYING AND DISCUSSING HISTORICAL MOVEMENTS, IDEOLOGIES OR INSTANCES OF RACIAL HATRED OR DISCRIMINATION, INCLUDING SLAVERY, INDIAN

REMOVAL, THE HOLOCAUST OR JAPANESE-AMERICAN INTERNMENT.

9. PREVENT THIS STATE FROM EITHER DOING OR REQUIRING AN APPLICANT, EMPLOYEE OR CONTRACTOR TO DO ANY OF THE FOLLOWING:

(a) DISCLOSE OR DISCUSS THE CONTENT OF THE INDIVIDUAL'S SCHOLARLY RESEARCH OR CREATIVE WORKS.

(b) CERTIFY COMPLIANCE WITH STATE AND FEDERAL ANTIDISCRIMINATION LAWS.

(c) IF EXPRESSLY REQUIRED BY FEDERAL LAW, CERTIFY THE EXISTENCE OF AN AFFIRMATIVE ACTION PLAN THAT DOES NOT INCLUDE PREFERENTIAL TREATMENT OF INDIVIDUALS ON THE BASIS OF RACE OR ETHNICITY.

~~C.~~ E. The remedies available for a violation of this section are the same, regardless of the injured party's race, sex, color, ethnicity or national origin, as are otherwise available for a violation of the existing antidiscrimination laws of this state.

~~D.~~ F. This section applies only to actions that are taken after ~~the effective date of this section~~ DECEMBER 14, 2010.

~~E.~~ G. This section is self-executing.

~~F.~~ H. For the purposes of this section, "state" includes this state, a city, town or county, a public university, including the university of Arizona, Arizona state university and northern Arizona university, a community college district, a school district, a special district or any other political subdivision in this state.

2. The Secretary of State shall submit this proposition to the voters at the next general election as provided by article XXI, Constitution of Arizona.

ANALYSIS BY LEGISLATIVE COUNCIL

Proposition 142 would amend the Arizona Constitution to provide that this state and cities, towns, counties, public universities, community colleges, school districts and any other political subdivisions:

1. Are prohibited from granting preferential treatment to or discriminating against individuals or groups based on race, sex, color, ethnicity or national origin in public employment, education or contracting, even if a part of a federal program.

2. Are prohibited from requiring applicants, employees, students or contractors to endorse or support giving preferential treatment to or discriminating against individuals based on race or ethnicity as a condition of admission, graduation, hiring, promotion, certification, contracting or other employment or scholarship opportunities. This proposition would:

(a) Prohibit requiring or soliciting a written or oral statement supporting certain race-based diversity, equity and inclusion concepts, theories or practices identified in the proposition.

(b) Prohibit requiring or soliciting individuals to confess race-based privilege or discuss the individuals' race or ethnicity or the views on or experience with the race or ethnicity of others.

(c) Prohibit giving preferable consideration to individuals based on expressed opinions if based on the race or ethnicity of those individuals.

(d) Prohibit requiring enrollment in, or completion of, any training or course that promotes the tenets outlined above.

3. Are prohibited from spending public monies to operate or contract for any office or position at a public educational institution that is responsible for promoting preferential treatment toward or discrimination against individuals or groups based on race or ethnicity, including prohibiting the use of public monies to influence the composition of the faculty and student body or for trainings, programs, activities and policies designed or implemented with reference to race, ethnicity, intersectionality, gender identity or sexual orientation, except as otherwise provided in the proposition.

4. Are prohibited from implementing any disciplinary policy or practice that treats students or employees differently on the basis of race or ethnicity.

Proposition 142 would provide for specified exceptions to these prohibitions.

ARGUMENTS "FOR" PROPOSITION 142

Most Arizonans believe that all people should be treated equally. No matter who is in power in Washington D.C., Arizona's schools, universities, and state agencies should never treat a student, staffer, or candidate differently under the guise of racial quotas or "diversity, equity, and inclusion" (DEI). This measure ensures that state taxpayer resources are never used to force students or state employees to endorse race-based discrimination or spend time and tuition dollars supporting programming that divides Arizonans by race.

We've seen the pendulum swing back and forth too many times in Washington D.C. This measure will establish permanent protections in Arizona's own state constitution by closing an existing loophole that has allowed race-based preferential treatment in hiring, education and state contracting if the federal government calls for it.

There is simply no justification in the 21st century for creating different rules for Arizonans based upon race, no matter what labels are used. We should celebrate the rich history and heritage of Arizonans from all backgrounds and walks of life, not squander taxpayer dollars in support of racialized policies and programming that pits Arizonans against each other.

Vote Yes on Prop 142.

Victor Riches, President & CEO, The Goldwater Institute, Phoenix
Sponsored by The Goldwater Institute

Vote YES on Prop 142 to dismantle DEI and support fairness and opportunity for all.

Diversity, Equity, and Inclusion (DEI) policies have failed Arizonans. Rather than supporting academic freedom, opportunity and debate, they have led to divisive discriminatory practices and preferential treatment of individuals based on characteristics such as race and sex.

Unfortunately, examples of DEI in Arizona's public institutions are well documented. Recent reporting highlighted discriminatory practices at publicly funded Arizona State University. The university is now the subject of an active U.S. Department of Justice investigation and an Arizona Supreme Court case.

Prop 142 is a necessary measure to uphold fairness and opportunity in Arizona state government, schools, and universities. If approved by voters, this reform would protect freedom of speech by ensuring those employers uphold an equal opportunity system rather than giving preferential treatment based on sex or skin color. Further, it would prohibit the employers from requiring DEI loyalty oaths as a condition of employment.

In Arizona, we ought to evaluate individuals based on their skills, their character, and their hard work.

Voting YES on Prop 142 will help dismantle DEI schemes and support fairness and opportunity for all.

Nathan Duell, Arizona State Director, Heritage Action for America, Glendale
Sponsored by Heritage Action for America

Arizona Women of Action believes every Arizona family and child deserves real opportunity based on merit, hard work, and character — never race.

A loophole in our state constitution has let federal mandates create race-based preferences in hiring, university admissions, and government contracting. These discriminatory practices divide our state, undermine excellence, and direct precious taxpayer dollars on quotas and DEI programs.

This measure closes the loophole. It makes equal treatment under the law the unconditional rule for all Arizonans with no federal overrides.

As economist Thomas Sowell has noted, "The question is not what anyone deserves, but what can be done to help people develop their own potential." Merit is the foundation of a fair and thriving society. When we reward ability and effort our schools produce better graduates, our workplaces hire the best talent, and every family has a genuine shot at success.

Protect merit and fairness for our children. Vote YES on Prop 142!

Kimberly Miller, President, Arizona Women of Action, Phoenix
Sponsored by Arizona Women of Action

Vote YES on Proposition 142 to protect merit and character over discrimination.

America was founded on the principle that all people are created equal. From the Declaration of Independence to the Civil Rights Movement, our nation has fought to ensure every person stands equal before the law regardless of race. This measure does not introduce a new ideology. It enforces the same ideals we have always aspired to.

Arizona's diverse history and heritage deserve celebration, but that celebration should never require creating different rules for different races. Recognizing our state's rich cultural contributions does not mean abandoning merit, qualifications, and character as the basis for opportunity in education, employment, and contracting.

Right now, Arizona's constitution permits race-based preferences whenever the federal government mandates them. That loophole has allowed DEI programs and racial quotas to operate in our public institutions, discriminating against qualified candidates and undermining the principles of equal treatment. These policies judge Arizonans by skin color instead of by their character and performance.

Proposition 142 closes this loophole permanently. It removes the threat that partisan political maneuvering in Washington can impose unfair racial preferences on Arizona. It guarantees that every Arizonan will be judged as an individual based on merit, not as a member of a racial category.

Arizonans overwhelmingly support fairness and equality of treatment for all citizens. This measure delivers exactly that. Vote YES on Proposition 142.

Jerry Pittman, Prescott
Sponsored by The Goldwater Institute

Vote YES on Proposition 142.

Growing up, I learned the lesson Dr. Martin Luther King Jr. taught our nation: we should judge people by the content of their character, not the color of their skin. Every year in school, we heard his message of unity and merit. That principle guided our country to real progress, allowing Americans of every background to achieve great things based on their effort and qualifications.

DEI programs reverse that progress. They pressure students and state employees to participate in race-based frameworks, using taxpayer dollars to treat Arizonans differently based on skin color instead of merit.

This does not help anyone succeed. Placing someone in a position because of their race, not their readiness, sets them up to struggle. Real achievement requires real preparation. Anything worth having is worth the effort.

This measure protects students and employees from compelled participation in these programs. It ensures Arizona's schools hire teachers based on qualification and merit. It guarantees state agencies award contracts based on performance. Most importantly, it treats every Arizonan as an individual, judged on character and ability.

Arizona should celebrate our diverse heritage without creating different rules for different races. Merit matters. Character matters. Vote YES on Proposition 142.

Shaulon McDaniel, Coolidge
Sponsored by The Goldwater Institute

Vote YES on Prop 142. Arizona's constitution currently contains a loophole: race-based preferential treatment in state hiring, university admissions, and contracting is prohibited except when the federal government calls for it. That carve-out has allowed racial quotas and DEI programs to take root in Arizona's public institutions whenever Washington mandates them, regardless of what Arizonans themselves want.

This measure closes that loophole for good. It constitutionally prohibits Arizona's schools, universities, and state agencies from treating any student, employee, or contractor differently because of race with no exceptions, and no dependence on which administration occupies the White House. State agencies will award contracts based on performance, not racial classification. Schools will hire based on merit and qualifications. Students won't be required to fund or participate in racialized programming with their tuition dollars.

This isn't a new ideology. It is the same principle America has affirmed since the Declaration of Independence and the Civil Rights Movement: that every person should be judged by their character, not their race. The measure targets the underlying practice of race-based preference, not any specific program name, so it can't be sidestepped by simply rebranding.

Equal treatment under the law is not a partisan position; it's one of the few principles nearly all Arizonans already share and a cornerstone of American doctrine. This measure simply makes that consensus permanent and immune to reversal by whichever administration happens to hold power in Washington next.

Vote YES. Make equal treatment Arizona's permanent, unconditional rule.

Scot Mussi, President, AZ Free Enterprise Club, Tempe
Sponsored by AZ Free Enterprise Club

Vote YES on Proposition 142 to end taxpayer-funded mandates that divide Arizonans.

Across Arizona's public universities, school districts, and state agencies, taxpayer dollars fund administrative offices that pressure employees and students to endorse specific race-based frameworks. Participation in these programs has become a condition of employment, promotion, or even graduation. This is not about banning conversation or diversity. It is about stopping government from compelling Arizonans to affirm ideological positions on race and identity or face professional consequences.

This measure protects students and employees from compelled participation in racialized programming. It ensures that state hiring, university admissions, and government contracting decisions are based on qualifications and performance, not racial classification. No matter what these programs are called, the rule is the same: Arizona cannot treat people differently based on race.

Arizona families are tired of watching tuition dollars and tax revenue poured into bureaucracies that sort people by identity group rather than judge them as individuals. This measure returns that decision to voters, not unelected administrators.

Vote YES on Proposition 142.

Dennis Liles, Mesa
Sponsored by The Goldwater Institute

ARGUMENTS "AGAINST" PROPOSITION 142

MEAN-SPIRITED AND MISGUIDED, ATTACKS TRUTH AND FAIRNESS

This blanket ban on every conceivable type of human difference is corrosive and harmful. We urge Arizonans to vote NO.

Our Republican-run legislature referred Prop 142 to the ballot because it couldn't pass muster as a bill. It would amend the Arizona Constitution, which means its wording should be careful and precise — it definitely is not. Embedding racism in our state's foundational document will have serious, wide-ranging consequences, causing grave injustices that would be difficult to reverse.

Some politicians would have us believe human differences should be hidden, not welcomed or celebrated. Those who put this ill-intended prohibition on our ballots ignore that it would block teachers from discussing truthful history and accurate science. They refuse to acknowledge that race and ethnicity data is essential to meaningful research or medical results. They especially hope we ignore the provision that would let them ban any "related practice or concept," giving them a free pass to create catch-all discrimination and injustice.

By joining together across races, backgrounds, abilities and genders, Americans have historically defeated the powerful few who tried to exclude Black children from schools, women from voting booths, working people from unions, disabled people from the workplace, and gay people from public life. Now it's our turn to take on those who seek to take us backward. To realize the American dream, we can make this a place of liberty and justice for all – no exceptions.

There is no way to spin this outright rejection of human difference as somehow beneficial to Arizona or the people who live here. We must welcome the diversity that makes our nation great, the equity that gives all a shot at the American dream, and the inclusion that assures everyone a seat at the table.

Melinda Iyer, Co-Director, Civic Engagement Beyond Voting, Phoenix and Catherine Sigmon, Co-Director, Civic Engagement Beyond Voting, Tempe
Sponsored by Civic Engagement Beyond Voting

The Arizona Constitution in Article 2, Section 36(A), reads, "This state shall not grant preferential treatment to or discriminate against any individual or group on the basis of race, sex, color, ethnicity, or national origin in the operation of public employment, public education or public contracting."

Prop 142, the Preferential Treatment Discrimination Act, which claims to ban preferential treatment and discrimination, is therefore, unnecessary. You should vote "No" on this ground alone.

Prop 142's lengthy, gobbledygook wording adds nothing to the Constitution's clear prohibition. To the contrary, it would result in confusion, disputes, and significant public and private costs.

The real aim of Prop 142 is not to prohibit preferential treatment, since the Constitution already prohibits it, but to pile onto attacks on DEI policies. So, let's consider what "DEI" stands for: Diversity, Equity, and Inclusion.

"Diversity" refers to the presence and participation of individuals with varying backgrounds and perspectives, including those who have been historically underrepresented, in any given setting. Diversity does not mean nor imply racial or other quotas. Organizations that embrace diversity lead in innovation, performance, recruitment, retention, and student, worker, and customer satisfaction. Think about how you go about making an important decision. Don't you try to gather as much information and perspectives as are available? That's diversity.

"Equity" means "Basic Fairness." Doesn't everyone want to be treated fairly?

"Inclusion" refers to a school or workplace setting where everyone feels valued, respected, and integrated into the organization's culture and operations. Thinking about any public setting, don't you want to feel valued, respected, and included in any activities or decisions that are being made?

When you consider what DEI stands for, there's no reason to fear it and certainly no reason for the Arizona Constitution to prohibit it. Vote "No" on Prop 142.

Marie Sansone, Williams

Vote NO on HCR 2044
The League of Women Voters of Arizona opposes discrimination and supports equal opportunity for all people. We believe public institutions should foster environments that are inclusive, accessible, and welcoming to all members of our communities.
The constitutional measure is unnecessary:Arizona law already prohibits discrimination and preferential treatment based on race, sex, color, ethnicity, and national origin. HCR 2044 goes far beyond those protections by restricting public schools, colleges, universities, and local governments from educational programs, training, outreach activities, and discussions related to race, ethnicity, diversity, inclusion, and equal opportunity.
The measure contains expansive and ambiguous language that could discourage institutions from offering lawful programs focused on student success, community engagement, cultural understanding, mentoring, or educational access. Faced with uncertainty and potential legal challenges, schools and public institutions may choose to eliminate programs and activities that serve our students and communities
The measure leaves the door open for future censorship well beyond the provisions voters are being asked to approve today. HCR 2044 grants future Legislatures the authority to prohibit additional concepts and activities without returning to voters for approval. This invites continuing political battles over curriculum, educational programs, research, training, and community engagement activities. Public schools, colleges, and universities should be preparing students to think critically, solve complex problems, and succeed in a diverse and competitive workforce—not navigating legislative efforts to restrict learning, inquiry, and the free exchange of ideas.
The League supports equal treatment under the law and opposes discrimination in all forms. We also believe Arizona's schools, colleges, and public institutions should retain the ability to provide educational opportunities, outreach, and support programs that serve the diverse communities of our state.
Protect equal opportunity. Preserve local decision-making and educational freedom.
Vote NO on HCR 2044.

Pinny Sheoran, Board Officer, Secretary / State Advocacy Chair, League of Women Voters of Arizona, Scottsdale
Sponsored by League of Women Voters of Arizona

The simple truth: Prop 142 would increase discrimination.
Businesses big and small have recognized in recent years that a lack of diversity means fewer customers. A diverse team has the skills to develop products and services far better for diverse customers. Prop 142 would ban efforts even to consider that.
It is also true for medical and health research to find cures for all the people, not just the wealthy few. Unfortunately Prop 142 would eliminate the dollars that fund this research.
In the first 200 years of our nation's history, we were pretty horribly racist and biased against women and any minority group. Fortunately now, almost all of us agree that slavery is bad and all people should have equal rights.
We might have come a long way, but we've still got a long way to go. With an effort informed by real life, we can be better, and we can achieve more.
This bad Prop 142 would stop all efforts to recognize the value that women and minorities bring to: public universities, community colleges, state employee positions, contractors, and public schools – charter and district. It would create DEI thought-police that have to review all their curriculum, their grants, their books, and look over the teacher's shoulders.
Please vote, "NO!" on Prop 142.
In Part C,1(a) this proposition would make it unconstitutional to make good-faith EFFORTS TO TRY TO DIVERSIFY THE FACULTY in any way, EVEN BY ADVERTISING TO RECRUIT diverse people to apply for the jobs. Our Arizona Constitution has already been amended to ban Affirmative Action, so hiring quotas and student selection quotas are already banned.
Please vote, "NO" on this proposition. Say NO to more discrimination and prejudice.
-- State Senator Mitzi Epstein and State Senator Lauren Kuby

Mitzi Epstein, State Senator, Arizona Senate, Tempe and Lauren Kuby, State Senator, Arizona Senate, Tempe
Sponsored by Denise "Mitzi" Epstein

This proposition would insert systemic racism into the state Constitution by blocking teachers from discussing truthful history and accurate science in school.

Enslavement, U.S. scientific achievements, the reasons behind wars, and the treatment of Indigenous peoples are all part of our history and should be taught, discussed, and included in textbooks. This measure also restricts training on how to support LGBTQ+ staff and students.

A blanket ban on learning about human differences is corrosive, harmful, and unnecessary.

Vote NO on Prop 142.

Gayle Shanks and Bob Sommer
Changing Hands Bookstore Co-Founders

Gayle Shanks, Tempe and Clive Sommer, Tempe
Sponsored by Gayle Shanks

My name is Courtney Banks with Our Voice, Our Vote Arizona, and I am speaking in opposition to Prop 142, also known as HCR 2044.
Diversity, Equity, and Inclusion (DEI) reflects Arizona. From Indigenous communities to women to veterans to Black and Brown communities, DEI is woven into the fabric of our state. This proposal to dismantle DEI programs runs counter to our values, our communities' best interests, and the long-term growth of future leaders and innovation.
Since Arizona's founding, people have come here in search of opportunity. That pursuit remains at the heart of who we are today. DEI expands opportunity by ensuring voices too often overlooked, underrepresented, or undervalued are included in decision-making and community life. Removing these efforts would move Arizona backward rather than forward.
Supporters claim Prop 142 is about fairness, but DEI programs are not preferential treatment. They are tools designed to ensure equal access to opportunity. This measure rolls back civil rights progress and weakens efforts to address systemic challenges. It would limit pathways that help communities build equitable futures.
At its core, DEI ensures people have a seat at the table and a voice in shaping schools, workplaces, and communities. These efforts strengthen education, workforce development, and public institutions. Arizona's history includes early efforts to expand voting rights, create safe spaces for students, and support people with disabilities, all rooted in inclusion.
Dismantling DEI risks narrowing talent pipelines, limiting innovation, and reducing access to opportunity. It could shrink job growth, silence diverse leadership, and weaken Arizona's competitiveness. At a time when we should be expanding opportunity, this measure moves us backward. Arizona should strengthen pathways to opportunity, not dismantle them.
We must protect inclusion. Arizona remains innovative, competitive, and committed to opportunity for every community across our state now and in the future.

Courtney Banks, Phoenix
Sponsored by Our Voice, Our Vote

The ACLU of Arizona is a non-profit, non-partisan organization committed to protecting the rights and liberties of all Arizonans. We urge a NO vote on Proposition 142 because it violates the First Amendment, attacks academic freedom, and seeks to dismantle decades of progress that has created a more just and equitable society for all Arizonans. Diversity, equity and inclusion (DEI) provides everyone, no matter their background, fair access to opportunity.

The movement for equity and inclusion is not new – it describes more than 200+ years of action that has benefited all Americans by delivering opportunities for all. For every community not fully included at our nation's founding, it is a core American value to demand fairness so that our individual merits speak for themselves.

HCR2044 violates the First Amendment by prohibiting certain ideas, viewpoints, and beliefs from being discussed in colleges and in government workplaces. Ideas are not illegal, and there is no "government-approved" speech exception to the First Amendment. "[T]he First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content." The "government may not prohibit the expression of an idea simply because society finds the idea itself offensive or disagreeable." HCR2044 punishes students and teachers for their beliefs, while prohibiting

ideas disfavored by some politicians from being debated and discussed in a college setting or within the workplace.

Attacks on DEI are attacks on our shared culture and values. DEI bans have been used to censor information about veterans, erase the history of marginalized groups, purge academic faculty, and censor academic discussion based on the viewpoints of the speaker. HCR2044 violates the First Amendment and the values that make Arizona a welcoming and equal place for all. The ACLU of Arizona urges a NO vote.

Darrell Hill, Director of Policy, ACLU of Arizona, Phoenix
Sponsored by ACLU of Arizona

Mi Familia Vota Recommends Voting NO on HCR 2044. This radical measure seeks to dismantle decades of civil rights progress in Arizona. By placing a blanket ban on public institutions considering race or ethnicity in any capacity—including education, employment, public contracting, training, and programming—it effectively outlaws diversity, equity, and inclusion efforts needed to level the playing field for disadvantaged communities.

The severe impacts of HCR 2044 include:
- Entrenching Inequality: It stops schools, universities, and state agencies from confronting systemic racism or actively promoting equal opportunities for historically marginalized communities.
- Aggressive Surveillance: It creates an invasive "DEI police" tasked with examining every single public grant, curriculum, and program for compliance. At the federal level, similarly aggressive surveillance has had destructive and inefficient results, leading to waste of taxpayer funds and chaos for government workers and stakeholders.
- Economic and Educational Harm: This overbroad enforcement directly jeopardizes public sector jobs, vital research grants, and community-focused programs.

As a society, we have long agreed that discrimination is wrong and that everyone deserves a fair shot in life. HCR 2044 erases the tools we need to address systemic disparities, making our public institutions less fair and less inclusive. Do not allow politicians to roll back basic civil rights protections. Vote no on HCR 2044.

Monica Sandschafer, Arizona State Director, Mi Familia Vota, Phoenix
Sponsored by Mi Familia Vota

We believe every Arizonan deserves to be treated fairly. Chispa Arizona puts this belief into action by empowering Latinx communities to influence policy, protect natural resources, and combat climate change.

Proposition 142 amends the Arizona Constitution in a way that will undermine the very programs that help ensure all communities have a fair opportunity to thrive by banning all public institutions from considering race or ethnicity in any way in education, employment, contracting, training, and programming.

This matters to environmental justice efforts because communities of color and low-income neighborhoods bear the greatest burden of polluted air, contaminated water, extreme heat, and hazardous industrial development. Addressing these inequities requires honest conversations about race and ethnicity. It requires engaging the most impacted communities, and doing targeted outreach—not pretending these disparities do not exist.

Prop 142 could chill efforts by our public colleges and universities to train future leaders, conduct research, and engage communities in environmental justice and other pressing public challenges. It also invites years of costly litigation over what public institutions may teach, discuss, or fund.

Arizona's Constitution should continue to protect equal opportunity—not be used to silence discussions about the real-world impacts of pollution, discrimination, and unequal access to healthy communities.

Environmental justice means ensuring that every family—regardless of race, ethnicity, income or ZIP code—has clean air to breathe, safe water to drink, and a healthy place to live. PROP 142 moves Arizona in the opposite direction by making it harder to identify and address inequities that continue to affect residents across our state.

Protect equal opportunity. Protect honest dialogue. Protect healthier communities for everyone.
Vote NO on PROP 142.

Jodi Liggett, Advisor, Chispa AZ, Tempe

Every person deserves a fair shot, whether that's in our schools, workplaces, and communities.

Prop 142 is a sweeping, unnecessary measure that would roll back efforts to ensure fairness, opportunity, and belonging across Arizona. It will create confusion and fear in public education, employment, contracting, training, grants, curriculum, and community programs.

Arizona should be focused on preparing students for the future, attracting good jobs, and building communities where everyone can thrive. Instead, this measure would make it harder for schools, cities, and public institutions to address barriers that still hold too many people back.

As Mayor, I've seen that Tempe's success is rooted in inclusion. We are stronger when people of every background have the opportunity to contribute, lead, and succeed.

This measure is not about fairness. It is about using state power to stop local communities from doing the work of expanding opportunity.

Vote NO on Prop 142.

Corey Woods, Mayor, City of Tempe, Tempe
Sponsored by Will of the People

HCR 2044 – Anti DEI measure. This is our MAGA legislature preening themselves to, well to themselves, by eliminating any semblance of DEI within our government. Instead of looking for and finding ways to promote our state as a welcoming and diverse community, we allow our legislature to get down in the weeds and direct what can be taught in our schools and push us into a two-page, four-sided ballot. Vote No on Proposition HCR 2044.

Timothy Everhard, Director, Arizonans for Freedom, Peoria

Ignoring a problem doesn't solve it. For generations, discriminatory policies in housing, education, and hiring created gaps in wealth and opportunity that still shape Arizona communities today. Prop 142 would make it illegal for public institutions to even acknowledge these realities, let alone address them.

Consider what that means in the classroom. Schools would be forbidden from teaching normal elementary school history including the Civil War, Women's Suffrage, and the Civil Rights Movement, foundational chapters of American history. Arizona parents send their kids to school to learn the truth about our country, hard parts included, because that's how we raise informed, capable citizens. A law that makes honest history a liability doesn't protect our children, it leaves them unprepared.

By blinding our institutions to inequality, Prop 142 doesn't create a level playing field; it freezes an uneven one in place and calls it fair. Arizonans who believe in honest education, equal opportunity, and the full promise of our state should vote NO on Prop 142.

*Casey Clowes is a Salt River Project (SRP) Board member. The views expressed are solely her individual views and opinions, and are not made on behalf of the SRP Board of Directors or Salt River Project Agricultural Improvement and Power District.

Casey Clowes, Board Member, At-Large, SRP, Tempe

Vote NO on Prop 142

Prop 142 is a sweeping constitutional amendment that would ban public schools, universities, and government agencies from considering race or ethnicity in a wide range of decisions and programs. While supporters claim it promotes fairness, the reality is that it would dismantle efforts designed to ensure all Arizonans have equal access to opportunity.

This measure goes far beyond banning discrimination, which is already illegal. Instead, it prohibits institutions from taking meaningful steps to address barriers that have historically prevented some communities from fully participating in education, employment, and public life. It would create confusion and fear among educators, public employees, and agency leaders who could face scrutiny simply for developing programs that promote inclusion, recruit diverse applicants, or help underserved communities access resources.

Prop 142 also risks creating a costly enforcement bureaucracy that invites investigations into grants, training programs, curricula, hiring practices, and community outreach efforts. Rather than focusing on delivering services and solving problems, public institutions could be forced to spend time and resources defending themselves against politically motivated complaints and legal challenges.

Arizona succeeds when everyone has a fair chance to contribute and thrive. Schools should prepare students to work in a diverse society. Universities should be able to recruit talented students from every background. Public agencies should be able to identify disparities and ensure taxpayer-funded programs reach the communities they are intended to serve.

As a country, we decided long ago that discrimination is wrong and that equal opportunity matters. Prop 142 moves Arizona backward by stripping away tools that help create fairness and inclusion. It makes it harder, not easier, to build institutions that reflect and serve all Arizonans.

We should be expanding opportunity, not restricting it. We should be solving problems, not policing inclusion.

Joel Edman, Phoenix
Sponsored by Will of the People

Vote NO on Prop 142 and protect academic freedom
Every student deserves a fair opportunity to learn, succeed, and feel like they belong in Arizona's public schools.
Prop 142 is a sweeping and harmful measure that would make it harder for schools, colleges, and public institutions to address inequality, support students from different backgrounds, and ensure fair access to opportunity.
As Arizona's former Superintendent of Public Instruction and an educator for students with disabilities, I have seen how important it is for schools to meet the needs of every student, including students with disabilities, multilingual learners, rural students, students of color, and students who have historically been left behind.
This measure would create confusion and fear across public education, employment, training, grants, curriculum, and programming. It could punish institutions for trying to ensure fairness, just so every student gets the education they need to succeed.
Arizona should be focused on helping every student reach their full potential, not creating new political mandates that make schools less welcoming and less effective.
Vote NO on Prop 142.

Kathy Hoffman, Former Arizona Superintendent of Public Instruction (2019-2023), Phoenix
Sponsored by Will of The People

Arizona women know that equal opportunity requires more than empty promises. Proposition 142 would make it harder for our schools, colleges, and public institutions to recognize and address the real barriers that women and girls continue to face. The Arizona Center for Women's Advancement (ACWA) works to ignite meaningful change in the public and private sector by providing information, education, and advocacy regarding the status of Arizona women and girls. At ACWA, we know all too well that women in Arizona still earn less than men, are more likely to live in poverty as they age, shoulder most unpaid caregiving responsibilities, and continue to experience disparities in maternal health, workplace leadership, and access to opportunity. Women of color face even wider gaps in income, health outcomes, and educational attainment.

Rather than helping solve these challenges, Proposition 142 would prohibit public colleges and universities from supporting many programs supporting populations that have faced historic discrimination, restrict training and programming related to gender identity and sexual orientation, and discourage institutions from acknowledging how prejudice affects people's lives. It goes far beyond banning discrimination; it limits the tools educators and public institutions can use to ensure everyone has a fair chance to succeed.

Women's progress has never happened by pretending inequality doesn't exist. It has come from identifying barriers, collecting data, educating future leaders, and creating opportunities for those who have historically been left behind.

The Arizona Center for Women's Advancement believes every woman deserves the opportunity to thrive—regardless of her race, ethnicity, income, or background. This measure moves Arizona in the wrong direction by discouraging honest conversations and effective solutions to persistent inequality.

Vote NO on Proposition 142. Protect equal opportunity for all Arizona women and girls.

Jodi Liggett, Founder, Arizona Center for Women's Advancement, Tempe

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As a mother, immigrant, and former Osborn School District board member, I believe every child and every family deserves dignity, opportunity, and a fair chance to succeed.

Prop 142 moves Arizona in the wrong direction.

This sweeping measure would make it harder for schools, colleges, public agencies, and community programs to address barriers that still exist in education, employment, contracting, training, grants, curriculum, and public services. It would create fear and confusion for institutions that are simply trying to ensure everyone has a fair shot.

I believe so strongly that public institutions must be able to recognize the needs of the communities they serve and work to expand opportunity.

Arizona's future depends on whether every child can learn, belong, and thrive. We should be opening doors, not tying the hands of educators and public servants who are trying to make our state more fair and inclusive.

Vote NO on Prop 142.

Hon. Ylenia Aguilar, Former Osborn Unified School Board Member, Phoenix
Sponsored by Will of the People

BALLOT FORMAT

PROPOSITION 142

PROPOSED AMENDMENT TO THE CONSTITUTION BY THE LEGISLATURE RELATING TO THE PROHIBITION OF PREFERENTIAL TREATMENT AND DISCRIMINATION

OFFICIAL TITLE
AMENDING ARTICLE II, SECTION 36, CONSTITUTION OF ARIZONA.

DESCRIPTIVE TITLE
ADDS FURTHER DETAILS TO THE CONSTITUTIONAL PROHIBITION AGAINST PREFERENTIAL TREATMENT OR DISCRIMINATION BY THE STATE BASED ON RACE, ETHNICITY, OR OTHER CLASSES.

A "yes" vote shall have the effect of amending the Arizona Constitution's current prohibition against preferential treatment or discrimination by the state based on race, ethnicity, or other classes, to specifically prohibit: (1) compelling individuals to support preferential treatment or discrimination based on race or ethnicity as a condition of education, employment, or contract opportunities; (2) spending public money on positions in public education responsible for promoting preferential treatment or discrimination based on race or ethnicity; and (3) implementing disciplinary practices that treat students or employees differently based on race or ethnicity. Prohibited conduct includes requiring or asking an applicant, employee, student, or contractor to provide a statement in support of race-based diversity, equity, and inclusion beyond upholding the federal Equal Protection Clause or asking such a person to discuss the person's race or ethnicity or experience with others' race or ethnicity. The amendment contains certain exceptions for health services, legal, and other reasons.	**YES** ☐
A "no" vote shall have the effect of maintaining the current prohibition in the Arizona Constitution against preferential treatment or discrimination by the state based on race, ethnicity, or other classes.	**NO** ☐